

Rakesh Kumar Verma v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 14 July 2011 · WRIT - C No. - 35761 of 2011 · **Writ dismissed; petitioner relegated to clause 6.5 representation.**

HEADNOTE

A writ challenging an electricity demand of about Rs.4.21 lakh was dismissed because the consumer had not invoked the statutory bill-correction representation to the Executive Engineer under para 6.5 of the U.P. Electricity Supply Code, 2005. Questions of fact, including whether the connection was ever released, are not to be decided under Article 226; the petitioner was relegated to that remedy.

FACTUAL SUMMARY

Rakesh Kumar Verma, proprietor of M/s Ambey Engg. Works, challenged a U.P. Power Corporation Ltd. demand of Rs.4,21,464 comprising fixed charges of Rs.1,029.60 and arrears of Rs.4,17,979 on Connection No. 514046 (KNO 03815140). He asserted that the firm had applied for supply but no connection was released, that welding was done with generators, and that the District Consumer Forum, Varanasi, in Case No. 234 of 2003 had on 2.6.2007 directed cancellation of all bills in the firm's name.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

statutory representation for correction of bills

HOLDING

A writ challenging an electricity bill need not be decided under Article 226 where the consumer has not made the statutory representation to the Executive Engineer under para 6.5 of the U.P. Electricity Supply Code, 2005, which is the remedy for correction of bills; the petitioner is relegated to that representation, including on questions of fact. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY CONNECTION WAS EVER RELEASED TO M/S AMBEY ENGG. WORKS, AND WHETHER THE WELDING WORK WAS DONE ONLY ON GENERATORS.

¶ 3

NOT DECIDED — EFFECT OF THE DISTRICT CONSUMER FORUM, VARANASI ORDER DATED 2.6.2007 IN CASE NO. 234 OF 2003 DIRECTING CANCELLATION OF BILLS IN THE FIRM'S NAME.

¶ 3

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS.4,21,464 (FIXED CHARGES AND ARREARS) ON CONNECTION NO. 514046.

¶ 2